



CHAPTER lii.

An Act to alter the wards of the borough of East Ham A.D. 1919.
to increase the number of aldermen and councillors
of the borough to increase the number of guardians
representing the parish of East Ham on the West
Ham Poor Law Union and for other purposes.

[15th August 1919.]

WHEREAS the borough of East Ham (hereinafter referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation"):

And whereas the borough is for the purpose of the election of councillors now divided into six wards each of which is represented by three councillors and the council now consists of six aldermen and eighteen councillors:

And whereas it is expedient for the better government of the borough and for the purpose of securing greater equality of representation that the borough be divided into ten wards each represented by three councillors and that the number of aldermen and councillors respectively be increased to ten and thirty:

And whereas by an order relating to the West Ham Poor Law Union and made under section 60 of the Local Government Act 1894 in the year nineteen hundred and five it is provided that the parish of East Ham should be divided into six wards and that one guardian should be elected for each such ward:

And whereas it is expedient that the number of guardians representing the parish of East Ham upon the board of guardians of the West Ham Poor Law Union be increased from six to ten:

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And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the East Ham Corporation Act 1919.

Interpretation.

2. In this Act unless the subject or context otherwise requires—

“The borough” means the borough of East Ham;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“The council” means the council of the borough;

“The mayor” and “the town clerk” mean respectively the mayor and the town clerk of the borough;

“The commencement of this Act” means the twenty-second day of October nineteen hundred and twenty.

Increase of aldermen and councillors.

3. On and after the first day of November nineteen hundred and twenty the council shall consist of ten aldermen and thirty councillors.

Division of borough into wards.

4.—(1) From and after the first day of November nineteen hundred and twenty the division of the borough into wards as existing immediately prior thereto shall cease to exist and the borough shall be divided into ten wards which shall be named respectively Manor Park Ward Little Ilford Ward Woodgrange Ward Plashet Ward Kensington Ward Castle Ward Central Ward Wall End Ward Greatfield Ward and South Ward.

(2) Each of the said wards shall comprise the portion of the borough indicated by a separate colour and distinguished by the name of the ward on the map (in this Act called “the

ward map") signed in triplicate by the Right Honourable the Lord Stanmore the Chairman of the Committee of the House of Lords to which the Bill for this Act was referred one of which has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons and one with the town clerk at his office.

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(3) Three councillors shall be assigned to each of the said wards.

5. A copy of the ward map shall within one month after the passing of this Act be deposited with the Board of Agriculture and Fisheries the Local Government Board the Registrar-General and the Commissioners of Inland Revenue.

Deposit of ward maps.

6. Copies of the ward map deposited with the town clerk or any extract therefrom certified by him to be true shall be received by all courts of justice and elsewhere as *prima facie* evidence of the contents of such map and such map shall at all reasonable times be open to the inspection of the persons liable to any rate leviable within the borough and all persons so liable shall be entitled to a copy of or extract from such map certified by the town clerk on payment of a reasonable fee for every such copy or extract.

Copies of ward map to be evidence.

7.—(1) At a meeting held within six weeks before the commencement of this Act the council as then constituted shall by resolution assign the councillors of the borough remaining in office after the first day of November nineteen hundred and twenty to the several wards into which the borough is by this Act divided or to some of them and every councillor so assigned shall hold his office in the ward to which he shall be assigned for the same period as he would have held such office if the existing wards of the borough had remained unaltered Provided that there shall not be assigned to any ward more than one councillor whose term of office expires on the first day of November nineteen hundred and twenty-one nor more than one councillor whose term of office expires on the first day of November nineteen hundred and twenty-two.

Appointment and retirement of councillors.

(2) At the elections to be held in any ward on the first day of November nineteen hundred and twenty so many councillors shall be elected as shall be necessary to complete the number

A.D. 1919. of three for each ward and the mayor or such person as he shall appoint shall be the returning officer at the elections for the new wards.

(3) The order of retirement of the councillors elected for any ward in pursuance of this section shall be as follows:—

(a) Where one councillor is elected he shall go out of office on the first day of November nineteen hundred and twenty-three:

(b) Where two councillors are elected the councillor elected by the larger number of votes shall go out of office on the first day of November nineteen hundred and twenty-three and the other councillor shall go out of office on the first day of November nineteen hundred and twenty-two or the first day of November nineteen hundred and twenty-one as the case may require having regard to the time of retirement of the assigned councillor for such ward:

(c) Where three councillors are elected the councillor elected by the largest number of votes shall go out of office on the first day of November nineteen hundred and twenty-three and the councillor elected by the next largest number of votes shall go out of office on the first day of November nineteen hundred and twenty-two and the councillor elected by the smallest number of votes shall go out of office on the first day of November nineteen hundred and twenty-one.

(4) If no poll shall be taken at the election of councillors for any ward on the first day of November nineteen hundred and twenty or if there shall be an equality of votes at any such election the council shall at their meeting held on the ninth day of November nineteen hundred and twenty determine the order of retirement of the councillors affected and if any doubt arises as to which councillor or councillors should go out of office at the various dates the doubt shall be determined by the council.

Election of
aldermen.

8. In regard to the election and rotation of aldermen the following provisions shall apply:—

(1) On the ninth day of November nineteen hundred and twenty the council shall elect five aldermen to hold office for six years and two aldermen to hold office for three years:

(2) On the ninth day of November nineteen hundred and A.D. 1919.
twenty-three the two aldermen so elected for three
years together with the three aldermen who would
in the ordinary course retire on that day shall go
out of office and their places shall be filled by
election:

(3) On the ninth day of November nineteen hundred and
twenty-six the five aldermen so elected for six years
shall go out of office and their places shall be filled
by election:

(4) If any doubt arises as to which alderman or aldermen
should go out of office at the various dates the doubt
shall be determined by the council.

9. Subject to the provisions of this Act all elections vaca-
tions of office and rotations shall be governed and regulated by
the Municipal Corporations Acts. As to elec-
tions and
rotation
generally.

10. For the purpose of the preparation of the autumn
register for the year nineteen hundred and twenty to be made
in pursuance of the Representation of the People Act 1918 the
borough shall be deemed to be divided into ten wards in
accordance with the foregoing provisions of this Act as from
such date as may be necessary. Preparation
of autumn
register for
year 1920.

11. Subject to the provisions of this Act the provisions of
the Municipal Corporations Acts with respect to the division of
the borough into wards or the alterations of wards shall apply
to the borough and nothing in this Act shall take away or affect
the power to alter the number or boundaries of the wards of the
borough under the provisions of the said Acts. Application
of Municipal
Corpora-
tions Acts.

12. Subject to the provisions of section 60 of the Local
Government Act 1894 (and as regards any alteration of the
wards constituted by this Act to the provisions of that Act as
to the alteration of wards for the election of guardians of the
poor) the following provisions shall have effect:— Increase of
guardians
for parish of
East Ham.

(1) The number of guardians for the parish of East Ham
shall be increased from six to ten and there shall be
a corresponding increase in the total number of
guardians for the West Ham Union:

(2) The parish of East Ham shall for the purposes of the
election of guardians be divided into ten wards

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which shall be respectively co-terminous in area with and shall bear the same names as the wards into which the borough is divided under the provisions of this Act:

(3) One guardian shall be assigned to each of the said wards of the parish of East Ham:

(4) At a meeting held within six weeks before the commencement of this Act the board of guardians of the poor of the West Ham Union as then constituted shall by resolution assign the then existing guardians representing the parish of East Ham respectively to such of the new wards into which the borough is divided by this Act as they may determine and every guardian so assigned shall hold his office in the ward to which he shall be assigned for the same period as he would have held such office in the existing ward of the said parish if the same had remained unaltered:

(5) Guardians shall not be elected to represent the four wards to which guardians are not assigned by the said board of guardians in pursuance of the preceding subsection of this section until the time of the ordinary election of guardians for the parish of East Ham in the year nineteen hundred and twenty-one and the four guardians then elected for those wards shall represent the same upon the said board of guardians until the fifteenth day of April nineteen hundred and twenty-four.

Local Government Board to determine questions.

13. If any difficulty or question arises with regard to the carrying out of the foregoing provisions of this Act the same may be determined by the Local Government Board on the application of the Corporation and the said Board may make such order as appears to them to be necessary or expedient for the purpose of removing such difficulty or determining such question.

Power to borrow.

14. The Corporation may borrow at interest for the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act"

on the security of the borough fund and borough rate of the A.D. 1919.
borough any sums not exceeding the amount ascertained as in —
that section provided.

15. The Corporation shall pay off all moneys borrowed under the authority of this Act within five years from the passing of this Act. Period for repayment of money borrowed.

16. The following sections of the East Ham Improvement Act 1903 and the East Ham Corporation Act 1914 shall as far as they are applicable for the purpose extend and apply with the necessary modifications to and in relation to this Act and be incorporated with and form part of this Act (that is to say) — Certain provisions of Acts of 1903 and 1914 to apply.

The East Ham Improvement Act 1903.

Section 33 (Protection of lender from inquiry);

Section 34 (Application of moneys borrowed);

Section 53 (Inquiries by Local Government Board).

The East Ham Corporation Act 1914.

Section 40 (Section 234 of Public Health Act 1875 not to apply);

Section 41 (Mode of raising money);

Section 42 (Provisions of Public Health Act 1875 as to mortgages to apply);

Section 43 (Mode of payment off of money borrowed);

Section 44 (Sinking fund);

Section 45 (Corporation not to regard trusts);

Section 46 (Appointment of receiver);

Section 48 (Power to reborrow);

Section 53 (Returns to Local Government Board as to sinking funds).

17. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act as taxed by the taxing officer of the Costs of Act.

A.D. 1919, House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of moneys to be borrowed under the powers of this Act for that purpose.

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